

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Connors	Team: Squad #09	CCRB Case #: 201703902	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 05/15/2017 6:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/15/2018	Precinct: 67		
Date/Time CV Reported Tue, 05/16/2017 5:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 05/16/2017 5:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Barry Luna	31420	955102	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Maher	13362	955113	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Barry Luna	Off. Language: Police Officer Barry Luna made remarks to § 87(2)(b) based upon her gender.	A . Unsubstantiated
B . Officers	Abuse: On May 27, 2017, inside of § 87(2)(b) in Brooklyn, officers damaged § 87(2)(b)'s property.	B . Unfounded

Case Summary

On May 15, 2017, at approximately 7:30 a.m., § 87(2)(b) was inside of her apartment located at § 87(2)(b) in Brooklyn. On this date, § 87(2)(b) had called 911 in regard to an on-going domestic dispute with her daughter, § 87(2)(b). During this dispute, § 87(2)(b) § 87(2)(b) had threatened to hit § 87(2)(b) with a hammer. Fearing for her safety, § 87(2)(b) called 911. Officers from the 67th Precinct arrived, and placed § 87(2)(b) § 87(2)(b) under arrest for menacing. As a result this interaction, § 87(2)(b) filed a Domestic Incident Report. Prior to this incident, § 87(2)(b) had obtained an Order of Protection against her daughter from a Family Court judge which restricted § 87(2)(b) § 87(2)(b) s access to § 87(2)(b) s apartment.

Later the same day, at approximately 6:15 p.m., § 87(2)(b) had just gotten home from work when she heard a knock at her front door. § 87(2)(b) went to the front door of her apartment and opened it. Standing in the hallway were PO Brian Maher and PO Barry Luna of the 67th Precinct. Present with the officers was her daughter, § 87(2)(b) § 87(2)(b). The officers explained they were in possession of a court order that specified that § 87(2)(b) § 87(2)(b) was allowed to enter into the apartment for the express purpose of retrieving her personal effects. § 87(2)(b) reluctantly consented to allowing officers and § 87(2)(b) § 87(2)(b) into the apartment.

Once inside the apartment, § 87(2)(b) and § 87(2)(b) § 87(2)(b) began arguing about what items in the apartment belonged to whom. This dispute continued while § 87(2)(b) § 87(2)(b) walked into § 87(2)(b) s bedroom. While in the bedroom, § 87(2)(b) saw § 87(2)(b) § 87(2)(b) grab two of her pocketbooks hanging off hooks on a bedroom wall. § 87(2)(b) told the officers that the pocketbooks did not belong to her. § 87(2)(b) approached § 87(2)(b) § 87(2)(b) to grab the pocketbooks from her hands. Before § 87(2)(b) could do so, PO Maher told § 87(2)(b) not to touch § 87(2)(b) § 87(2)(b). PO Maher then asked to see a receipt to prove § 87(2)(b) owned the pocketbooks. § 87(2)(b) responded that she did not have a receipt and did not need to prove that these items were hers. During this interaction, PO Luna allegedly said to § 87(2)(b) § 87(2)(b) “You’re a bitch because you got your own daughter locked up” (**Allegation A**). § 87(2)(b) did not respond. After this remark was made, the officers and § 87(2)(b) § 87(2)(b) left the apartment.

On May 27, 2017, at approximately 7:30 a.m., § 87(2)(b) was on her way to work when she received a text from her boyfriend, § 87(2)(b) § 87(2)(b) wrote that officers and § 87(2)(b) § 87(2)(b) were banging on the front door to their apartment. § 87(2)(b) told § 87(2)(b) not to open the door for the officers. After an indeterminate amount of time, the officers and § 87(2)(b) § 87(2)(b) left. When § 87(2)(b) returned home later that day, she observed several dents on her apartment door. § 87(2)(b) alleged that this damage had been caused by the officers (**Allegation B**) (**Board Review 01**).

§ 87(2)(g)
There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during her in-person interview but it was rejected § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of September 20, 2017, § 87(2)(b) has not filed a Notice of Claim with the New York City Comptroller's Office in regards to this complaint. **(Board Review 03)**

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s fourth CCRB complaint **(Board Review 04)**.
- PO Luna has been a member of service for four years. § 87(2)(b)

Potential Issues

- The investigation attempted to locate and contact the sole witness to the May 15 incident. During her CCRB interview, § 87(2)(b) stated she had no contact information for her daughter. Database searches for § 87(2)(b) § 87(2)(b) were conducted but ultimately the investigation was unable to locate § 87(2)(b) § 87(2)(b) and obtain a sworn statement from her.
- During her CCRB interview § 87(2)(b) alleged that on May 27, she had received a text message from her boyfriend, § 87(2)(b) who alleged that police officers along with § 87(2)(b) § 87(2)(b) had gone to § 87(2)(b) and damaged the front door to her apartment while attempting to gain entry. During a phone statement, § 87(2)(b) § 87(2)(b) denied hearing officers at the front door to the apartment, and stated he was asleep during the entirety of this incident **(Board Review 08)**.
- § 87(2)(b) provided a phone number to a second witness to the May 27 incident, his son, § 87(2)(b) § 87(2)(b) was contacted several times in an attempt to obtain a sworn statement. Ultimately, § 87(2)(b) did not provide a sworn statement for the investigation.

Findings and Recommendations

Explanation of Subject Officer Identification

While § 87(2)(b) provided an identical generic description of the officers involved during this incident, the investigation identified the responding officers via the 67th Precinct Resource Log from the date of incident. The log indicated that PO Brian Maher and PO Barry Luna responded to § 87(2)(b), which was closed as a non-crime corrected incident. Furthermore, both officers have memo book entries related to this incident.

During his CCRB interview, PO Maher stated he was the officer who presented § 87(2)(b) with a copy of the court order at the onset of this incident. While both officers denied making the offensive remark toward § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Allegation A – Offensive Language: Police Officer Barry Luna made remarks to § 87(2)(b) based upon her gender.

§ 87(2)(b) alleged that while she and § 87(2)(b) § 87(2)(b) were engaged in a verbal dispute regarding the ownership of certain items found within § 87(2)(b)'s bedroom, PO Luna said to her, “You’re a bitch because you got your own daughter locked up.”

During their CCRB interviews, PO Luna and PO Maher acknowledged they had responded to a family domestic dispute at 1092 Willmohr Street. The officers stated their sole intent during this incident was to facilitate § 87(2)(b) § 87(2)(b)'s retrieval of her personal effects as mandated by a court order. The officers were consistent in describing their interaction between § 87(2)(b) and § 87(2)(b) § 87(2)(b) as combative. During this incident, PO Luna denied ever making the abovementioned statement toward § 87(2)(b) and PO Maher denied hearing PO Luna make such a statement (**Board Review 06 and 07**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: On May 27, 2017, inside of § 87(2)(b) in Brooklyn, officers damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that while she was at work, she received a text message from her boyfriend, § 87(2)(b) who informed her that officers had arrived at § 87(2)(b) in Brooklyn, with § 87(2)(b) § 87(2)(b) wrote that the officers had banged on the front door, but that no one inside of the apartment answered the door. When § 87(2)(b) returned home from work later that day, she alleged that officers had caused damage to the front door of her apartment. During her in-person interview, § 87(2)(b) provided a photograph of this alleged damage done to the front door. This photograph had been taken several hours earlier prior to § 87(2)(b)'s interview, conducted on June 14, 2017, which depicted a series of dents along the upper right side of the front door to § 87(2)(b)'s apartment.

The investigation obtained a phone statement from § 87(2)(b) in regard to this incident. During this statement, § 87(2)(b) denied ever hearing officers bang on the front door of the apartment, stating he had been asleep during the incident. § 87(2)(b) stated that his son, § 87(2)(b) and his friend were asleep in the living room, which is the first room upon entry into the apartment. § 87(2)(b) stated he had never been informed by his son of this incident after it had taken place (**Board Review 08**). Additionally, no police documentation exists that suggests that officers responded to § 87(2)(b)'s residence on this date.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unfounded**.

Squad: **9**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date